

MULTI-YEAR SUBSCRIPTION AGREEMENT

Contract ID (internal): CTR-0013 **Contract Name:** Aperture SaaS — Multi-Year Subscription

1. Parties

This Subscription Agreement is entered between **Nimbus Retail Co.** (“Customer”) and **Aperture SaaS Platform Limited** (“Vendor”), a company registered in Ireland.

2. Term

Effective Date: October 1, 2024 **Initial Term:** Thirty-six (36) months, ending **September 30, 2027**.

3. Renewal

This Agreement shall **automatically renew** for successive twelve (12) month terms unless a Party delivers written non-renewal notice at least **sixty (60) days** prior to the end of the then-current term.

4. Fees and Payment Terms

- **Committed Subscription Fee:** USD 260,000 per year, invoiced annually in advance.
- **Aggregate Contract Value Cap:** USD 780,000 across the Initial Term.
- **Payment Terms:** Net 60 days from invoice date.
- **Currency:** USD (invoiced from Vendor’s US entity).
- **Annual Uplift:** Up to 5% per Renewal Term upon sixty (60) days notice.

5. Scope

Enterprise subscription to the Aperture platform including (a) core modules A-E, (b) unlimited internal users, (c) 24x7 standard support, and (d) quarterly roadmap reviews.

6. Service Level

- **Monthly Uptime:** 99.95%.
- **Incident Severity Definitions and Response:** Exhibit C.
- **Credits:** Up to 15% of monthly fees per SLA miss.

7. Data Protection

Vendor shall process personal data in accordance with the attached Data Processing Addendum (UK/EU GDPR compliant). Customer data is hosted in EU-West region by default.

8. Termination

Termination for material breach: thirty (30) days notice and failure to cure. Termination for convenience: not permitted during the Initial Term. During Renewal Terms, either Party may terminate for convenience on one hundred twenty (120) days notice.

9. Governing Law

Republic of Ireland, submitting to the non-exclusive jurisdiction of the courts of Ireland.

Signatures

For Nimbus Retail Co.: Marco Alvarez, VP Product For Aperture SaaS Platform Limited: Authorized Signatory